

23STCV25137 23STCV25137

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-09-04

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Case Number: 23STCV25137 Hearing Date: September 4, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

23STCV25137

ANGELA

VANEGAS, AN INDIVIDUAL vs MCDONALD'S

September

4, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF ANGELA VANEGAS'S MOTION TO VACATE/SET ASIDE JUNE 10, 2026 JUDGMENT,
AND MAY 14, 2026 ORDER GRANTING DEFENDANT'S MOTION FOR SUMMARY JUDGMENT;
REQUEST TO DEEM PLAINTIFFS' [PROPOSED] OPPOSITION CONSIDERED; AND ALTERNATIVELY
REQUEST FOR DISCRETIONARY RELIEF UNDER C.C.P. § 473(b).

RULING:

The Court denies the Motion.

Defendant to give notice.

I.

BACKGROUND

The

Court incorporates by reference the Background section of the Minutes entered on May 14, 2026.

On June 10, 2026, the
Court filed the Judgment for Defendant.

On August 10, 2026,
Plaintiff filed the Motion to Vacate/Set Aside the June 10, 2026 Judgment and the
May 14, 2026 Order granting Summary Judgment.

On August 11, 2026,
Plaintiff filed a Notice of Appeal from the Judgment.

Defendant essentially responds
that a detailed review of events shows no excusable neglect and attorney
malpractice is imputed to clients.

II.

LEGAL STANDARD

Code of Civil Procedure

section 473, subdivision (b) provides: "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect...." As to motions made under Code of Civil Procedure section 473, moving parties have the initial burden to prove excusable neglect by a preponderance of competent evidence. (Kendall v. Barker (1988) 197 Cal.App.3d 619, 624.) "It is clearly established that '[a] motion for relief under section 473 is addressed to the sound discretion of the trial court and an

appellate court will not interfere unless there is a clear showing of an abuse.' " (Burnete v. La Casa Dana

Apartments (2007) 148 Cal.App.4th 1262, 1266. Accord, Strathvale Holdings v. E.B.H. (2005) 126 Cal.App.4th 1241, 1249.)

III.

ANALYSIS

Plaintiff moves to vacate

and set aside the Judgment and Order granting Summary Judgment, and to obtain consideration of the Opposition, based on a medical disruption causing reassignment of attorney work during short staffing, settlement negotiations leading to counsel's mistaken failure to timely oppose Summary Judgment, and failure to notify the Court before the hearing.

Defendant argues points,
including the following:

1.

Counsel had time to request extending deadlines, where the attorney's hip injury occurred March 12, 2026, 22 days after the Motion service, Plaintiff's opposition was due April 24, 2026, 43 days after the injury, and the hearing was May 14, 2026, 63 days after the injury.

2.

Counsel lacked diligence in negotiating settlement,
with some silence and delegating to a paralegal, and it was never finalized.

3.

The day before the hearing, counsel filed
a declaration requesting a continuance or leave to file a late opposition.

4.

Contending with the increased workload was
not beyond the attorney's control. (Henderson v. Pacific Gas & Electric Co. (2010) 187 Cal.App.4th 215, 219-232.)

5.

Waiting until the day before the Summary
Judgment hearing to act was strategy not excusable neglect.

6.

After summary judgment was granted on May 14, counsel waited three months to seek relief.

7.

At the April 16 hearing, the Court had found no good cause for counsel's failure to appear.

8.

Granting would unsettle a final judgment and costs award and force Defendant to relitigate a case properly resolved on the merits.

There are several grounds indicating that the Motion should be denied.

First, Plaintiff filed a Notice of Appeal from the Judgment, causing this Trial Court to lose jurisdiction. An automatic stay pending appeal jurisdictionally bars all proceedings that seek to enforce, vacate or modify the appealed judgment or order, or that substantially interfere with ability to conduct the appeal. (LAOSD Asbestos Cases (2018) 28 Cal.App.5th 862, 872.) "Generally, ... an appeal from a judgment order strips the trial court of any authority to rule on the judgment." (Pazderka v. Caballeros Dimas Alang, Inc. (1998) 62 Cal.App.4th 658, 666.) "[W]hether a matter is 'embraced' in or 'affected' by a judgment within the meaning of section 916 depends upon whether postjudgment trial court proceedings on the particular matter would have any impact on the 'effectiveness' of the appeal. If so, the proceedings are stayed...." (Franklin & Franklin v. 7-Eleven Owners for Fair Franchising (2000) 85 Cal.App.4th 1168, 1173 [citing Code Civ. Proc., § 916]. Accord, Young v. Tri-City Healthcare Dist. (2012) 210 Cal.App.4th 35, 51 ["In determining whether a proceeding is embraced in or affected by the appeal, we must consider the appeal and its possible outcomes in relation to the proceeding and its possible results."].)

Second, Code of Civil Procedure section 473 is not grounds for modifying, amending or revoking an order, and the requirements of section 1008 must be satisfied. (Gilberd v. AC Transit (1995) 32

Cal.App.4th 1494, 1500-1501; *Even Zohar Constr. & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 840, 844.) But, after entering a final judgment, courts lack jurisdiction to rule upon a request for reconsideration. (E.g., *Aguilar v. Atl. Richfield Co.* (2001) 25 Cal.4th 826, 859; *Sole Energy Co. v. Petrominerals Corp.* (2005) 128 Cal.App.4th 187, 192.)

Third, it may be an abuse of discretion to grant relief under Code of Civil Procedure section 473 where there is unexplained delay of over three months before moving for relief. (*Huh v. Wang* (2008) 158 Cal.App.4th 1406, 1421, fn.4.) Courts have allowed settlement as a satisfactory excuse for delay in filing documents, if negotiations occurred during the whole relevant time span, and there were mutual efforts inducing a party to reasonably believe they were working towards a probable settlement as distinguished from a unilateral hope of settlement. (E.g., *San Bernardino City Unif. Sch. Dist. v. Superior Court* (1987) 190 Cal.App.3d 233, 239; *Arnke v. Lazzari Fuel Co.* (1962) 202 Cal.App.2d 278, 281.) Here, Plaintiff's counsel inexplicably delayed filing this Motion after losing the Summary Judgment Motion, and lacked a reasonable belief in settlement when rejecting Defendant's tax-related provisions shortly before the imminent hearing and never thereafter obtaining Defendant's assent.

Fourth, the Court's Order included evidentiary considerations on the merits, such that mandatory relief is inapposite. Where a ruling was the procedural equivalent of a default, not involving court consideration of factors, and resulted from counsel's admitted inexcusable conduct of failing to file an opposition, then the mandatory relief provision based on attorney-fault applies. (*Younessi v. Woolf* (2016) 244 Cal.App.4th 1137, 1148. Cf. (*Hossain v. Hossain* (2d Dist. 2007) 157 Cal.App.4th 454, 459 [inapplicable to failure to file opposition to motion].) Section 473 does not permit an escape hatch from a judgment based upon evaluations of factors. (*Henderson v. Pacific Gas and Elec. Co.* (2010) 187 Cal.App.4th 215, 228-229 ["does not include relief for mistakes an attorney makes in opposing, or not opposing, a summary judgment motion (or not timely requesting a continuance of a hearing on a summary judgment motion)...."]; *Ambrose v. Michelin North America, Inc.* (2005) 134 Cal.App.4th 1350, 1355 [summary judgment]; *Prieto v. Loyola Marymount University* (2005) 132 Cal.App.4th 290,297 [summary judgment]; *English v. IKON Business Solutions, Inc.* (2001) 94 Cal.App.4th 130, 138 [summary judgment]; *Ayala v. Southwest Leasing & Rental, Inc.* (1992) 7 Cal.App.4th 40, 44.)

Fifth, the Court finds

that counsel made a strategic decision to try to finalize the settlement agreement shortly before the summary judgment hearing such that filing an opposition would become moot. There is a split of authority as to whether relief is mandatory based upon counsel's admission of fault, where counsel made a tactical choice. (See, e.g., "[A] defendant may be entitled to relief under the mandatory provision of section 473, subdivision (b), even where the attorney makes a bad strategic decision,..." (Talbot v. Ghadimi (2025) 109 Cal.App.5th 967, 971 [disagreeing with Jerry's Shell v. Equilon Enterprises, LLC (2d Dist. 2005) 134 Cal.App.4th 1058]; Solv-All v. Superior Court (4th Dist. 2005) 131 Cal.App.4th 1003, 1012 ["Other cases also suggest in dicta that a "strategic decision" or "deliberate tactic" would not or might not justify relief.... Again, we disagree].)

Sixth, the Court does not

find reasonable attorney conduct, given the untimely Opposition under the above-referenced circumstances. A judge should exercise discretion to consider a late opposition, depending upon whether the attorney's conduct was reasonable under the circumstances. (Ambrose v. Michelin North America, Inc. (2005) 134 Cal.App.4th 1350, 1353; Luri v. Greenwald (2003) 107 Cal.App.4th 1119, 1129; Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 684; Samaniego v. Empire Today LLC (2012) 205 Cal.App.4th 1138, 1146 [court had discretion to not consider late-filed documents where counsel provided no plausible explanation for the tardiness]; Kapitanski v. Von's Grocery Co. (1983) 146 Cal.App.3d 29, 31 [requiring relief under Code Civ. Proc., § 473, as to late-filed opposition]; Cal. Rules of Court, rule 3.1300(d) [judges have discretion to consider late filed documents, and minutes or orders must indicate such decisions].)

Seventh, the Court does

not find grounds for discretionary relief, for the following reasons:

1.

The Court lacks evidence of the recovery progress of the attorney having the injured hip over a substantial period of time involved. A doctor's declaration is desirable, where proof with regard to health of the declarant was inconclusive, for purposes of deciding relief under Code of Civil Procedure section 473. (Davis v. Thayer (1980) 113

Cal.App.3d 892, 909.)

2.

Counsel had plenty of time to make alternative arrangements for handling the opposition in order to contend with the press of business and short staffing, such as bringing in counsel to assist, or timely seeking a continuance and extended opposition deadline. To constitute grounds for relief under Code of Civil Procedure section 473, generally attorneys' exceptional workload must be accompanied by a factor outside attorneys' control in an unmanageable situation, such as mistakes of clerical staff. (*Huh v. Wang* (2007) 158 Cal.App.4th 1406, 1424.) Being busy and experiencing stress in meeting deadlines in the practice of law alone is not excusable neglect. (*Ambrose v. Michelin North America, Inc.* (2005) 134 Cal.App.4th 1350, 1355 [counsel unsuccessfully argued the stresses of a busy practice, the hurry to meet deadlines and obligations of other pending litigation].)

3.

There are instances of neglect involved, such as failure to file or to argue regarding a Notice of Settlement that would render moot the Motion for Summary Judgment. Attorneys' negligence amounting to conduct falling below the standard of care in the profession is imputed to their clients, and does not constitute excusable neglect in support of relief under Code of Civil Procedure section 473. (*Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1415; *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.)

IV.

CONCLUSION

Accordingly, for reasons stated above, the Court denies the Motion.